

CONTRACT NO. _____

**AGREEMENT BETWEEN THE CITY OF CHEYENNE AND
THE CHEYENNE SYMPHONY ORCHESTRA**

1. **Parties.** The parties to this Agreement are the City of Cheyenne, a municipality duly organized and existing under the laws of the State of Wyoming, hereafter “City”, whose address is 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, and the Cheyenne Symphony Orchestra, a Wyoming non-profit corporation, hereafter “CSO”, whose address is 1904 Thomes Avenue, Cheyenne, Wyoming 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to authorize the CSO to use the Cheyenne Civic Center, subject to the terms and conditions in this Agreement, on the dates contained in Attachment A, attached hereto, incorporated by reference and expressly made a part of this Agreement.
3. **Term.** This Agreement is effective when all parties have executed it and all approvals have been granted. The term of this Agreement is from July 1, 2013, through June 30, 2014. By mutual written agreement, this Agreement may be extended for two additional one year terms.
4. **Payment.** The CSO agrees to pay the City the sum of \$3,200.00 per performance. This amount will constitute the total amount to be paid by the CSO for use of the Civic Center for each performance, which shall include all labor, utilities, rental, and all other fees. The term “Performance” includes each public performance and all rehearsals, which shall not exceed three per performance. Use of the Civic Center for Saturday rehearsals is part of the Saturday performance and are included as part of the performance charge.
5. **City’s Responsibilities.** The City will:
 - a. Provide storage for the CSO refrigerator, shelves, signs, floral arrangements, programs, decorations and related materials, and storage in one Green Room cupboard;
 - b. Display the CSO Foundation logo and related materials;
 - c. Provide concessions during concert intermissions;
 - d. Furnish unsecured storage for musical instruments and related equipment during the week of rehearsals. The CSO acknowledges its understanding that the risk of loss for instruments and equipment while in storage or use at the Civic Center will remain exclusively with the CSO. The CSO agrees to hold the City of Cheyenne and the Civic Center harmless from and indemnify them from any loss or damage to any instrument or equipment which may occur;

e. Offer for sale, single tickets for CSO performances at their face value for the 2013-2014 season;

f. Permit food to be served to musicians in the Green Room during rehearsal breaks and during performance evenings;

g. Permit one and one-half hours for Green Room set-up prior to rehearsals;

h. Permit guests authorized by the CSO and the Civic Center Director to attend rehearsals without charge;

i. Permit musicians to access the restrooms in the south lobby wing during rehearsals; and

j. The City will keep the acoustical shell on the Civic Center premises and will continue its present maintenance program.

6. **CSO's Responsibilities.** The CSO shall:

a. Conduct all performances and rehearsals in accordance with the rules and regulations of the Civic Center;

b. Clean up and maintain all areas used following rehearsals and performances. CSO will pay for any necessary janitorial services if it fails to properly clean the areas which have been used;

c. Furnish and commit to performance and rehearsal dates no later than 45 days prior to each;

d. CSO shall provide commercial general liability insurance for claims arising out of bodily injury, illness and death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000.00 per occurrence and \$2,000,000.00 aggregate for the entire term of this Agreement.

i. The City of Cheyenne shall be named as an additional insured on CSO's general liability insurance policy and CSO shall provide the City with a copy of the endorsement.

ii. CSO shall provide the City with certificates of insurance acknowledging the above-stated coverage prior to beginning any work under this Agreement.

iii. It is understood and agreed that this policy is primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon CSO to immediately notify in writing the City risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

iv. In addition, CSO shall provide the City with a copy of the insurance policy and/or policy endorsement listing the City of Cheyenne as an additional insured. The City's failure to request or review such policy, endorsement, or certificate shall not affect the City's rights or CSO's obligation hereunder.

v. Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A- (excellent).

e. Furnish completed forms for technical requirements no later than 14 days prior to a performance, and ticketing requirements no later than 60 days prior to performances; and

f. Pay rental fees upon receipt of invoice from the Civic Center.

7. **Special Provisions.**

a. Rehearsals. During rehearsal periods, CSO will prevent its personnel from entering areas of the Civic Center other than the specific contracted rehearsal space and related performer support areas: i.e., the stage, dressing rooms, Green Room and restrooms. Performers are to avoid the front-of-house areas.

b. Rehearsal Sites. It is the intent of the parties that rehearsals be held in the Civic Center when it is available. For the 2013-2014 season, the performance and rehearsal dates are set forth in Attachment A, attached hereto. The Civic Center reserves the right to preempt any scheduled rehearsal date identified in Attachment A by scheduling another activity or event in the Civic Center on said date, so long as the other activity or event is scheduled at least 45 days prior to the scheduled rehearsal date. The Civic Center may not preempt a scheduled rehearsal in the 44 day period prior to the scheduled rehearsal date.

i. If the Civic Center commits to another activity or event at least 45 days before a scheduled rehearsal date identified in Attachment A, the Director will hand deliver notice of the commitment to the CSO at least 45 days prior to the scheduled rehearsal. Upon proper delivery of notice, the CSO may choose one of the alternate rehearsal sites listed in subparagraph c. The CSO must hand deliver notice of its intent to use an alternate site within two weeks after receipt of notice from the Director.

ii. In the event a rehearsal is relocated, the Civic Center will furnish a crew to load CSO instruments onto any means of transportation arranged by the CSO for that purpose. The expense for transportation will be borne by the CSO. The CSO will not be required to reimburse the Civic Center for its labor costs.

c. Alternate Rehearsal Sites. If the Director of the Civic Center preempts a scheduled rehearsal date in accordance with the notice provisions of subparagraph b., the CSO may use any one of the following sites, provided however, that the CSO shall not be entitled to preempt any event or activity that has been previously scheduled at such site:

i. The City of Cheyenne-Kiwanis Community House.

ii. Any other suitable City structure which is available.

iii. Any other location agreed upon by the parties.

d. Costs of rehearsal relocation will be the responsibility of the CSO.

e. Follow all written rules, regulations and policies of the Civic Center.

8. **General Provisions.**

a. Amendments. Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement must be incorporated by written instrument, executed and signed by all parties.

b. Applicable Law. The construction, interpretation and enforcement of this Agreement are governed by the laws of the State of Wyoming. In the event of a lawsuit, the courts of the State of Wyoming will have jurisdiction and venue will be in the First Judicial District, Laramie County, Wyoming.

c. Compliance with Laws. The CSO agrees to comply with all applicable federal, state and local laws and regulations in the performance of this Agreement.

d. Entirety of Agreement. This Agreement and Attachment A represent the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.

e. Indemnification. The CSO agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to

the extent caused by (1) CSO's breach of any term or provision of this Agreement, or (2) any negligent or wrongful act, error or omission by CSO, or its employees or subcontractors in the performance of this Agreement. CSO acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

f. Notice. All notices arising out of or from the provisions of this Agreement will be in writing and given to the parties either by regular mail or delivery in person.

g. Prior Approval. This Agreement will not be binding upon either party, no services will be performed under the terms of this Agreement nor payment made until this Agreement has been approved by all necessary authorities.

h. Governmental Immunity. The City of Cheyenne expressly reserves its right to invoke governmental immunity for any claim arising out of this Agreement, pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*

i. Termination. Either party may terminate this Agreement for cause after providing written notice and a 30 day opportunity to cure any breach of this Agreement. Either party may, upon 30 days written notice, terminate this Agreement without cause.

j. Force Majeure. The parties agree that any delay or failure of the other to perform its obligations under this Agreement, except for the payment of money for services rendered, shall be excused due to acts of God, strikes, action of regulatory agencies, fire, flood, windstorm, explosion, riot, war, sabotage, or other cause or causes beyond the reasonable control of the non-performing party, provided that timely notice of such delay is given by the party to the other and each of the parties shall be diligent in attempting to remove the cause of non-performance.

9. **Signatures**. In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

[Signature page to follow]

The Agreement date is the date of the last signature affixed to this page.

CHEYENNE SYMPHONY ORCHESTRA

Date

President

Corporate Secretary

CITY OF CHEYENNE

Date

Richard L. Kaysen, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk